CARLOS & CARLSON (PVT) LIMITED
versus
DOREEN VEGAN BITES
and
SIMBARASHE MACHIHA

HIGH COURT OF ZIMBABWE
TAKUVA J
Harare 24 July 2025 & 12 January 2026

Mrs N Mushonganyika, for Applicant
Mr M Chakandida for the second Respondents
No appearance for the first respondent

TAKUVA J: This is an Urgent Chamber application for a prohibitory Interdict.

BACKGROUND FACTS

The Applicant is a duly registered company involved in the production, distribution, and sale of vegetarian products. The 2nd Respondent was employed as a Production Assistant on 27 March 2021. The 2nd Respondent unlawfully terminated his employment on or about 2 March 2025 via a WhatsApp audio message. Thereafter, the Applicant received reports from multiple clients indicating that the 2nd Respondent had approached them, claiming to have established a competing business and disseminating promotional material substantially similar to that of the Applicant. After carrying out an investigation, the Applicant obtained packaging belonging to the 1st Respondent which bore striking similarities in colour and design to the Applicant's own packaging. The Applicant avers that these similarities are likely to confuse consumers and amount to misrepresentation that the 1st Respondent's products originate from or are associated with the Applicant. This conduct constitutes the common law delict of passing off, as the Respondents are unlawfully appropriating the Applicant's goodwill and reputation to promote their competing enterprise.

APPLICANT'S CASE

The Applicant made an Urgent Chamber Application for an interdict to stop the 1st and 2nd Respondents, their assigns, agents, and or employees from soliciting, producing, distributing, and sale of vegetarian products as the Applicant. The basis for the application is clause 6 of the

alleged contract of employment between the Applicant and the 2nd Respondent. The Applicant submits that in respect of time, the cause of urgent relief arose on or about 27 March 2025, upon becoming aware of the Respondents' competing activities. The Applicant alleges that these activities are ongoing, and the Respondents continue to engage in conduct that is directly prejudicial to the Applicant's operations. With regards to harm, the Applicant alleges that the Respondents' continued operation poses a real and immediate risk of financial loss, reputational damage, and unlawful interference with the Applicant's business relationships. Thus, the relief sought is necessary to safeguard the Applicant's legitimate business interests.

Additionally, the Applicant argued that it cannot be disputed that a valid and enforceable contract of employment exists between the Applicant and the 2nd Respondent. The Applicant submits that although the 2nd Respondent now seeks to deny signing the contract, the document bears his signature and is properly executed. The Applicant submits that the fact that the contract does not have the parties' initials does not render the contract invalid. The Applicant argues that the failure to acknowledge the contract of employment by the 2nd Respondent is just a tactic to try to run away from clause 6 of the Contract, and no evidence has been put before the court's consideration to prove otherwise, other than a baseless refusal to acknowledge the existence of the Contract. In the premises, the Applicant prays for an order of costs on the Legal Practitioner and client Scale, as a mark of the Court's displeasure at the Respondents' unjustified opposition and abuse of process.

SECOND RESPONDENT CASE

The 2nd Respondent alleges that he engaged with the Applicant in a verbal employer-employee agreement, and there was no signed contract of employment between the parties. It was submitted that the Applicant's contract attached to the application has some spaces where the employer and the employee were supposed to sign, but those open spaces were left blank, and some clauses of the alleged contract of employment were left incomplete. The following can be noted from the alleged contract:

- It is not indicated who represented the applicant on the said agreement,
- Clause 4 of the alleged contract has some blank spaces,
- There is no address to serve any notices to the 2nd Respondent on clause 5 of the alleged agreement,

•Where it is written, signed by the employer, and signed by the employee, was left blank; no one signed.

•The contract is alleged to have been done on a Saturday; the employer and employee did not do any work-related duties on Saturday, their Sabbath.

The 2nd Respondent avers that he resigned because he earned a salary of $100, and did not receive his salary on time, which made him resign in early March 2025. The Applicant is currently in salary arrears of USD $230.00, owing to the respondent. The 2nd Respondent alleges that after resigning, he accepted the offer to engage with the 1st Respondent to do part-time marketing of the 1st Respondent's products. The 2nd Respondent indicated that he's not certain if the 1st Respondent is a registered entity or not, and if registered, who its directors are; hence, he can clearly state that the better and further particulars of the 1st Respondent are unknown to him.

The 2nd Respondent submitted that he will not be addressing issues pertaining to the 1st Respondent since they are part of the proceedings. The 2nd Respondent denies ever signing any contract of employment with the Applicant. 2nd Respondent relies on the fact that the alleged contract of employment attached to Applicant's founding affidavit is not signed by both the Applicant and the 2nd Respondent. Hence, the 2nd Respondent argues that he's not bound by any obligations arising from Annexure "B".

Moreso, the 2nd Respondent only confirmed that he entered into a verbal contract whose terms are different from the alleged contract. The 2nd Respondent denies ever agreeing to the contents of clause 6 and the bulk of the information contained in Applicant's alleged contract of employment, and never saw the document during the tenure of their employment relationship.

The 2nd Respondent indicated that from the attachments annexed to the application, there is no identity or phone numbers proving that the Applicant indeed received messages inquiring whether it had rebranded its products. The Respondent argues that there were no supporting affidavits from the people alleged to have communicated to the applicant; hence, their identity is veiled in obscurity. It was disputed that the labels by the 1st Respondent resemble those of the Applicant.

POINTS IN LIMINE - Some Annexures put by Applicant are not admissible as evidence since the language used in them is not English

The 2nd Respondent raised 2 points *in limine*; however, the first point in limine was abandoned. In the present matter, the Respondent alleged that the Applicant did not give an explanation why the contents of the annexures were not translated into the language of the court. Reliance was placed on Section 48 of the High Court Act [*Chapter* 7:06], which provides that:

> "Save as is otherwise provided in rules of the court or in any other enactment, all proceedings in the High Court shall be carried on in open court, and the pleadings and proceedings thereof shall be in the English language."

The Respondent also made reliance on the case of Stand Five Four Naught (Private) Limited vs Salzman SA SC 30/2016, Uchena JA stated that:

> "English is the language through which proceedings are conducted. Evidence should be presented in English. If a witness uses a language other than English, his evidence should be led through an interpreter who understands that language and can interpret it into English. This also applies to documentary evidence presented in a foreign language. An interpreter must translate it into the English language."

Additionally, in *State* vs *Mlauzi* and 3 others, CHIKOWERO J stated that:

> "Yet another piece of evidence was irregularly admitted. This was a WhatsApp message wherein the author was telling the complaint that the latter's employees were stealing from the complaint. The exhibit is in the Shona language. The official language in proceedings before the magistrates' court is English. Since the exhibit was not translated into English, we also exclude that piece of evidence in determining the appeal."

The Respondent submitted that the Applicant deliberately attached annexures again not translated into English in its answering affidavit. As a result, the 2nd Respondent submits that the WhatsApp messages in Shona and or other language apart from English be expunged from the record.

In Response to the point *in limine* raised by the 2nd Respondent, the Applicant acknowledges that certain aspects in documents submitted in support of this application are not in English. The Applicant avers that the submission of these documents was done in good faith and with the sole intention of presenting a complete and transparent evidentiary record. It was submitted the substance and context of these materials are not contested and are readily comprehensible to all parties involved, including the Respondents, who are conversant with the language in question. The Applicant submits that this technical irregularity should not vitiate the application or dimmish its substantive merits. Reliance was placed in the case of Zesa v Dera *1998 (1) ZLR 500 (S)*, the Supreme Court emphasized that procedural rules must not be applied rigidly where their strict enforcement would result in injustice. The court has a discretion to

condone technical non-compliance where the broader interest of justice so demand. As a result, the Applicant prays for the Court's indulgence to regularize the record and ensure that the matter is determined on its merits rather than on procedural technicalities and that the preliminary point be dismissed in its entirety.

The court takes note that the Applicant conceded that the annexures they attached to the application are inadmissible. The Respondent argued that such an admission should not be taken lightly.

The law clearly stipulates that English is the official language in which court proceedings are conducted. In this case, the preliminary point will result in the exclusion of the evidence submitted. The preliminary point raised by the 2nd Respondent be and is hereby upheld.

MERITS

The Applicant argued that the Respondent has resorted to mere nit-picking for lack of a valid defense to the current application. It was submitted that the contract bears his signature. In the case of Makoni and Another v City of Harare and another (HH253/2023) the court held that:

> "… that Ms J Ncube's initials did not appear on the pages of the agreement of sale other than her signature on the last page cannot by itself, invalidate the agreement. It has not been validly shown that such agreements in general or this agreement. It has not been shown that such agreements in general or this agreement in particular, derived validity from the signatories' initials on every page …."

The Applicant pointed out that the above-mentioned case clearly shows the presence of the essential elements of a contract namely, offer, acceptance, *animus contrahendi* and capacity, the court will not interfere with a valid contract. In casu, the Applicant argues that the contract bears signatures of both parties, clearly indicating mutual consent and intent to be legally bound. Thus, the contract is both valid and enforceable.

The 2nd Respondent alleges that the employer and employee's names do not appear, and also the person representing the company does not appear. The Respondent submits that there is no valid contract of the said Annexure ''B'' on the Applicant's founding affidavit. The 2nd Respondent made reliance on the case of Margaret Tichareva vs Innocent George Mutsetsema and Ors HH134/18 stated as follows:

> "An agreement of sale entered into between two parties is concluded when two parties append their signatures to the agreement. It is at this stage that the contract becomes *perfecta".*

In this present matter the 2nd Respondent argues that the document attached by the Applicant as the basis of its application is not signed by parties, it is vague. Thus, the document

is not enforceable at law. The Respondent's argument is that he is not bound by a contract he did not append his signature thus, the Applicant failed dismally to prove on balance of probability a clear right.

It was also submitted that the Applicant did not put evidence before the court as to who the customers are only to state that they are from Adventist community, there were no supporting affidavits attached by Applicant to buttress its case. The Respondent alleges that the application is merely based on beliefs, speculation and there were no cogent reasons given to support the application.

Wherefore, the 2nd Respondent prays that the application be dismissed with costs on higher scale.

ISSUES FOR DETERMINTION

a) Whether the contract of employment is valid.

THE LAW AND LEGAL ANALYSIS

As was held in the Margaret Tichareva case *supra* a contract is valid upon the two parties appending their signatures to it. In casu it is apparent that the two parties did not sign the contract of employment incorporating clause 6 dealing with the restraint of trade provision. Annexure B shows that the contract of employment has blank spaces where the parties were supposed to affix their signatures.

DISPOSITION

The Applicant has failed to establish his case on a balance of probabilities in that that 2nd Respondent is clearly not bound by the provisions of clause 6 of the so called contract of employment.

ORDER

In the result, the application is hereby dismissed with costs.

TAKUVA J……

Maesera & *Mashonganyika* Attorneys applicant's legal Practitioner
Chakandida and *Associates*, second respondent's legal practitioners Legal Practitioner